

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 25-29

**MAC Industries Inc. d/b/a MAC Container Line,
Complainant,**

**v.
COSCO Shipping Lines Co. Ltd.,
COSCO Shipping Lines (North America) Inc., and
COSCO Shipping Lines (India) Private,**

Respondents.

RESPONDENT COSCO INDIA’S MOTION TO DISMISS COMPLAINT

Respondent COSCO Shipping Lines (India) Private Ltd., s/h/a COSCO Shipping Lines (India) Private (“COSCO India” or “CIN”), having specially appeared by its undersigned attorneys for the limited purpose of filing this motion, respectfully submit this Motion to Dismiss the Complaint of MAC Industries Inc. (“MAC” or “Complainant”) against COSCO India based on the insufficiency of the service of process.

INTRODUCTION

Complainant has improperly sought to bring COSCO India into this FMC proceeding despite the facts that CIN is not a regulated entity before the FMC, CIN does not have any business before the FMC, and CIN has not sought relief before the FMC. Moreover, proper service of process was not effectuated pursuant to the requirements of U.S. and applicable international law, and on that basis, the Complaint against CIN must be dismissed.

The Verified Amended Complaint was approved by the ALJ on July 15, 2026, and purportedly served by the Secretary on July 16, 2026. For the purposes of this motion, service by

the Secretary appears to have been attempted in two ways: (i) by service on counsel for COSCO Shipping Lines Co. Ltd (“COSCO”); and (ii) by sending a FedEx copy to CIN at the address provided by MAC in the Amended Complaint. Neither is effective.

Service by email to COSCO counsel was ineffective because the FMC Rules allow service on counsel only *after* counsel has entered an appearance on behalf of that Party. 46 C.F.R. 502.114(b). Counsel for COSCO did not enter an appearance for CIN – indeed had no relationship with CIN -- prior to the purported email service. Entering a special appearance to challenge service, which counsel did on August 3, 2026, does not qualify under the above rule, so neither the original email nor a new email would qualify as service for purposes of the FMC Rules or due process.

The purported service by FedEx was equally unavailing. Because CIN is domiciled in India, which does not allow service by mail, only service pursuant to the Hague Convention will constitute effective service.

LEGAL STANDARD

Although the Commission’s Rules of Practice and Procedure do not expressly provide for Motions to Dismiss, Rule 12 of the Commission’s Rules states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission’s Rules to the extent that the application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12.

COSCO India’s motion to dismiss based on the insufficiency of the service of process (Fed. R. Civ. P. 12(b)(5)) conforms with this precept.

ARGUMENT: SERVICE OF PROCESS WAS AND IS INSUFFICIENT

The attempted service of the Amended Complaint did not comply with mandatory U.S. law concerning the service of process on parties resident in foreign jurisdictions, including India. Thus, the Amended Complaint must be dismissed with respect to COSCO India.

As alleged by MAC and not disputed by CIN, CIN is a corporation organized and existing under the laws of India with its principal place of business in India (Doc. 24, ¶ 3). Given that CIN is domiciled in India, the terms of the Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, November 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638 (the “Hague Convention”) necessarily apply.

Article 1 of the Hague Convention states: “The present Convention shall apply in all cases, in civil or commercial matters where there is occasion to transmit a judicial or extrajudicial document for service abroad.” As held by the U.S. Supreme Court, the language of Article 1 is “mandatory”. *Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694, 699 (1988) (citing *Société Nationale Industrielle Aérospatiale v. United States District Court for the Southern District of Iowa*, 482 U.S. 522, 534 n. 15 (1987)). *See also* Fed. R. Civ. P. 4(f)(1) Advisory Committee’s Notes (1993 Amendments): “[The Hague] Convention is an important means of dealing with problems of service in a foreign country...Use of the [Hague] Convention procedures, when available is mandatory if documents must be transmitted abroad to effect service... Therefore, [Fed. R. Civ. P. 4(f)(1)] provides that, when service is to be effected outside a judicial district of the United States, the methods of service appropriate under an applicable treaty shall be employed if available and if the treaty so requires.” (citations omitted).

The United States and India are signatories to the Hague Convention. *Lucero v. Wheels India, Ltd.*, 2023 WL 8622293 (5th Cir. 2023). A plaintiff or complainant adverse to a party

domiciled in India is required to effect service under the terms of the Convention because both the United States and India are State Parties to the Convention. *Id.* at 1, fn. 3. Thus, the terms of the Hague Convention mandatorily apply to service of process on COSCO India in this matter.

The Supreme Court has reprised the basic functioning of the Hague Convention:

The primary innovation of the Convention is that it requires each state to establish a central authority to receive requests for service of documents from other countries...Art. 2. Once a central authority receives a request in the proper form it must serve the documents by a method prescribed by the internal law of the receiving state or by a method designated by the requester and compatible with that law. Art. 5. The central authority must then provide a certificate of service that conforms to a specified model. Art. 6. A state also may consent to methods of service within its boundaries other than a request to its central authority. Arts. 8-11, 19.

Schlunk, 486 U.S. at 698-99 (citation omitted).

As stated in *Schlunk*, party states to the Hague Convention have the option to consent to other methods of service, including service by postal channels. Hague Convention, Article 10. Conversely, a state may affirmatively object to such service, as India has done.

In the official Declaration/Reservation/Notification of India, India objects, *inter alia*, to service of documents by postal channels directly to persons within its territory.¹ It confirms that direct service by postal means is not acceptable and directs that the documents must be provided to India's Ministry of Law and Justice for service.²

The U.S. Supreme Court addressed the issue of the service of process by postal means in *Water Splash, Inc. v. Menon*, 581 U.S. 271 (2017). In *Water Splash*, the plaintiff sought to make service of process on a party in Canada by mail. *Id.* at 274. The Court noted that Canada had not objected to Article 10's service by mail provisions. *Id.* at 282-83 n. 7. In finding that the service of process by mail was permissible, the Court held: "[I]n cases governed by the Hague Service

¹ <https://www.hcch.net/en/instruments/conventions/status-table/notifications/?csid=984&disp=resdn>

² <https://www.mea.gov.in/service-of-summons-abroad>

Convention, service by mail is permissible if two conditions are met: first, the receiving state has not objected to service by mail; and second, service by mail is authorized under otherwise applicable law.” *Id.* at 284 (citation omitted). Here, the purported service by mail fails the first condition, because India objects to such service.

The FMC has recognized that extraterritorial entities must be served in accordance with the Hague Convention. In *Samsung Electronics America, Inc. v. OOCL*, Dkt 24-17 (ALJ Order granting dismissal of third-party claim, July 10, 2025), for example, Judge Ambrow dismissed a complaint filed by OOCL against Samsung Electronics Company, Ltd. (the parent of SEA) on the grounds that SEC was domiciled in Korea, so had to be served pursuant to the Hague Convention.

The FMC’s position is echoed by the U.S District Courts. For example, in *Ghazarian v. Republic of Turkey*, Case No. CV 19-4664-PSG (Ex), 2020 WL 3643483 (C.D. Cal. Mar. 30, 2020), the plaintiffs attempted to serve the government of Turkey by mail. Noting that Turkey objected to this manner of service, the Court denied a request for the entry of a default judgment on the basis of inadequate service for failure to serve in accordance with the Hague Convention.

India is in the precise same position as South Korea and Turkey. As stated above, India likewise prohibits service by mail and mandates service pursuant to the Hague Convention, *i.e.*, direct service by mail is impermissible. *Lucero v. Wheels India, Ltd.*, 2023 WL 8622293 (5th Cir. 2023) (“Because [Defendant] is a foreign defendant, Plaintiffs are bound by Rule 4(f), which requires a party to effect service in accordance with the Hague Convention”) (citation omitted).

Failure to follow the proper procedure supports the dismissal of the action under Fed. R. Civ. P. 12(b)(5). *See Castillo v. Hongjin Crown Corp.*, Civil Action No. DR-08-CV-00031-AMLVRG, 2008 WL 11334092, * 2-3 (W.D. Tex. Oct. 27, 2008) (Garcia, Mag. J.), report and recommendation adopted and dismissal granted, 2009 WL 1069624, *2 (W.D. Tex. Sep. 16, 2009)

(where plaintiffs failed to send the summons and complaint through Korea's Central Authority for service, granting the motion to dismiss under Fed. R. Civ. P. 12(b)(5) was proper). The same analysis and result must apply to matters involving India.

In sum, the terms of the Hague Convention are mandatory and have not been followed in this matter. The Amended Complaint was not sent to the Central Authorities designated by India. This deviation from the prescribed manner of service under the Hague Convention to a party located in India establishes that service of process on CIN was not properly effected, so CIN remains unserved, and hence a non-party.

Moreover, even if service by mail is sufficient for COSCO – which is debatable – mail service is not effective on CIN, just as such service was not effective against Samsung Korea in the *SEA v. OOCL* matter.

CONCLUSION

In conclusion, COSCO India has not been served in the manner required by the FMC Rules, the Federal Rules of Civil Procedure, the Supreme Court and other federal courts, a treaty in force that binds the United States (of which the FMC is a part) and the U.S. Constitution. Accordingly, the Amended Complaint must be dismissed with respect to CIN.

Dated: August 13, 2026

Respectfully submitted,



Rebecca A. Fenneman
Eric C. Jeffrey

Kaya C. Massey
JEFFREY/FENNEMAN LAW + STRATEGY PLLC
700 12th St. NW, Suite 700
Washington, DC 20005

*Counsel for Respondent COSCO Shipping
Lines (India) Private Ltd.*

CERTIFICATE OF SERVICE

I hereby certify that on August 13, 2026, I served a copy of the foregoing *Respondent CIN's Motion to Dismiss* on the following counsel of record for Complainant by email, in accordance with 46 C.F.R. § 502.114, and filed the original with the Secretary of the Commission.

Attorneys for Complainant:

Julia Bonestroo Banegas, Esq.
jbanegas@joneswalker.com

Christopher M. Hannan, Esq.
channan@joneswalker.com

Abigail J. Weiland, Esq.
aweiland@joneswalker.com

/s/ Kaya Massey

Kaya C. Massey
JEFFREY/FENNEMAN LAW + STRATEGY PLLC
700 12th St. NW, Suite 700
Washington, DC 20005